

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mark Carpenter	Team: Team # 3	CCRB Case #: 200507215	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 05/09/2005 9:00 PM	Location of Incident: § 87(2)(b)	Precinct: 70	18 Mo. SOL 11/9/2006	EO SOL 11/9/2006	
Date/Time CV Reported Mon, 06/27/2005 2:20 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/27/2005 2:20 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Norman Grandstaff	00588	922445	070 PCT
2. POM Lawrence Sidman	30025	905058	070 PCT
3. POM James Seery	04544	931985	070 PCT
4. POM William Buckley	13719	929795	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Norman Grandstaff	Abuse: Sgt. Norman Grandstaff stopped and questioned § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.SGT Norman Grandstaff	Force: Sgt. Norman Grandstaff used physical force against § 87(2)(b)	§ 87(2)(b)
C.POM Lawrence Sidman	Force: PO Lawrence Sidman used physical force against § 87(2)(b)	§ 87(2)(b)
D.POM Lawrence Sidman	Force: PO Lawrence Sidman struck § 87(2)(b) with a nightstick.	§ 87(2)(b)
E.POM William Buckley	Force: PO William Buckley used physical force against § 87(2)(b)	§ 87(2)(b)
F.POM James Seery	Force: PO James Seery used physical force against § 87(2)(b)	§ 87(2)(b)

Synopsis

§ 87(2)(b) called the CCRB on June 27, 2005 at 2:20 PM regarding an incident that occurred on May 9, 2005. § 87(2)(b) did not witness the incident but was filing the complaint on behalf of her daughter, § 87(2)(b) and the other victim, § 87(2)(b). § 87(2)(b) was leaving school on the day of the incident when she ran into her boyfriend, § 87(2)(b). § 87(2)(b) had told § 87(2)(b) not to see § 87(2)(b) but § 87(2)(b) agreed to let § 87(2)(b) walk her home anyway. Several minutes after leaving the school, § 87(2)(b) and § 87(2)(b) began to argue, although they both denied it became physical. Two witnesses observed § 87(2)(b) and § 87(2)(b) and called 911 to report that a black male was assaulting a black female. Sgt. Norman Grandstaff and PO Lawrence Sidman responded to the 911 caller's house and spoke to the witnesses before approaching § 87(2)(b) and § 87(2)(b) with PO James Seery and PO William Buckley closely behind them. While PO Buckley and PO Seery spoke with § 87(2)(b) Sgt. Grandstaff and PO Sidman unsuccessfully requested that § 87(2)(b) speak with them (Allegation A). § 87(2)(b) resisted the officers' attempts to guide § 87(2)(b) further away from § 87(2)(b) and he began to punch and kick at the officers. In an effort to handcuff § 87(2)(b) Sgt. Grandstaff and PO Sidman brought § 87(2)(b) down to the ground, § 87(2)(b) stated that he was taken down by his hair (Allegation B, C). While § 87(2)(b) was down on the ground and continuing to resist being handcuffed, PO Sidman struck him in the leg with his nightstick (Allegation D). When § 87(2)(b) observed the struggle between § 87(2)(b) and the officers, she lunged at Sgt. Grandstaff and attempted to pull him off of § 87(2)(b) PO Buckley and PO Seery then intervened and removed § 87(2)(b) from the sergeant's back. § 87(2)(b) stated that the officers pushed her, pulled her by her braids, and punched her once in the back (Allegation E, F). Both individuals were eventually handcuffed and transported in separate vehicles for arrest processing.

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b)

Medical Records (encl. 21A-I)

§ 87(2)(b) sought medical treatment at § 87(2)(b) after the incident § 87(2)(b). § 87(2)(b) reported that she had been assaulted by police and was experiencing pain in her neck, back, left shoulder, and leg. § 87(2)(b) described the pain as "mild."

CCRB Testimony (encl. 8A-D)

§ 87(2)(b) was interviewed at the CCRB on July 15, 2005. § 87(2)(b) is a § 87(2)(b), 5' 2" black female.

On May 9, 2005, at approximately 9:00 PM, § 87(2)(b) was leaving night school, which is held at § 87(2)(b), while another woman was threatening her. To avoid the woman, § 87(2)(b) sat down on the steps and hoped that the woman would simply pass with the other exiting students. § 87(2)(b) was not supposed to see her boyfriend § 87(2)(b) on that day, per her parents' rules, but she saw him and he offered to walk her home. § 87(2)(b) initially refused but then accepted § 87(2)(b)'s offer. However, as § 87(2)(b) and § 87(2)(b) began walking, § 87(2)(b) began to argue with § 87(2)(b) about having gone with him. § 87(2)(b) was angry that § 87(2)(b) had taken her away from the school because she wanted to see what the woman was going to do.

Around § 87(2)(b), 4-5 police officers approached the couple and told § 87(2)(b) that they had two witnesses who claimed § 87(2)(b) had been hitting § 87(2)(b) PO1 (male, white, short hair, uniform, other details unknown, § 87(2)(b) s arresting officer) did most of the talking, first asking what was going on. § 87(2)(b) stated that, in the 3-4 minutes since they had left the school, the couple had been arguing verbally but not physically and that it was "not that serious." Consequently, § 87(2)(b) told the officers that their claim was not true. § 87(2)(b) was standing quietly at this point. § 87(2)(b) stated

that then, “I don’t know what happened,” § 87(2)(b) was thrown against the fence and then hit with a nightstick by the officers. § 87(2)(b) “doesn’t remember much” but believed that PO Grandstaff (male, white, short hair, uniform, § 87(2)(b) s arresting officer) was the officer that pushed § 87(2)(b) against the fence. § 87(2)(b) could not remember the details of this fence; specifically if it was taller than § 87(2)(b). § 87(2)(b) and § 87(2)(b) were standing on the sidewalk and § 87(2)(b) believed that the fence was on the edge of the sidewalk, although she could not estimate how far away from the fence § 87(2)(b) was before he was thrown into it. § 87(2)(b) s reaction to being pushed up against the fence was “angry;” he was screaming “Agh” from the pain and tearing.

§ 87(2)(b) then yelled, “No, stop! What are you doing?” PO1, who was standing to § 87(2)(b) s right, then pulled her shirt before he placed both of his hands on her shoulders and pushed her down to the ground. § 87(2)(b) was now being hit with a nightstick. When asked who was hitting § 87(2)(b) § 87(2)(b) replied, “I guess Grandstaff, because that was his arresting officer.” There was only one officer with his nightstick drawn. § 87(2)(b) stated that § 87(2)(b) was not resisting, adding that he couldn’t have because of “the way they had him.” § 87(2)(b) elaborated that § 87(2)(b) was face down on the ground and that the officers had his arms twisted behind him. § 87(2)(b) did not know if the officers were attempting to handcuff § 87(2)(b) at that point. § 87(2)(b) was still screaming.

§ 87(2)(b) stated that an officer scratched her left arm and when asked by whom she was scratched, § 87(2)(b) stated “My arresting officer [PO1], I guess.” § 87(2)(b) stated that she sustained the injury while she was being handcuffed, and thus the assumption. She does not know if the handcuffs caused the scratches themselves or the officer’s fingernails, for example.

§ 87(2)(b) presumed that the same officer that pulled her to the ground (i.e., PO1) was the same officer that held her down by her braids. When asked directly who pulled her braids, § 87(2)(b) responded, “I say my arresting officer.” Only one officer was physically dealing with § 87(2)(b) other officers were standing immediately nearby. § 87(2)(b) was then punched once in the center of her back, from which she sustained bruising, but she does not know which officer hit her because she was face down on the ground. She also received a bruise on her knee and arm.

The officers were not giving her any commands or instructions during the interaction. § 87(2)(b) was not saying anything at this time. After she was handcuffed, she was loaded in to one of the additional vehicles that had arrived on the scene. § 87(2)(b) could not describe any of the additional officers, besides stating that PO3 and PO4 were white males. § 87(2)(b) stated she did not interact with any of the responding officers.

Later at Central Booking, § 87(2)(b) s judge questioned why the “victim” of the incident had been arrested and it was explained – § 87(2)(b) did not state by whom – that § 87(2)(b) had pushed and hit the officers and was therefore arrested.

After she was released, § 87(2)(b) went to § 87(2)(b) for her injuries.

§ 87(2)(b)

Medical Records (encl. 22A-O)

§ 87(2)(b) sought treatment at § 87(2)(b) on § 87(2)(b) – two days after the incident. § 87(2)(b) stated that he was “beaten up by the police” and complained of pain in his right shoulder, leg, and wrist. § 87(2)(b) further described this pain as an “ache” and admitted that he did not request medical attention while he was incarcerated.

CCRB (encl. 10A-D)

§ 87(2)(b) was interviewed at the CCRB on August 26, 2005. § 87(2)(b) is a § 87(2)(b) black male. He is 5’ 10” and 172 pounds.

On May 9, 2005 at approximately 9:00 PM, § 87(2)(b) was walking on § 87(2)(b) toward Flatbush when he noticed § 87(2)(b). § 87(2)(b) saw § 87(2)(b) and asked her what she was doing. § 87(2)(b)

§ 87(2)(b) stated that this girl had threatened her and § 87(2)(b) wanted to see what she was going to do. § 87(2)(b) convinced § 87(2)(b) to leave, she offered her hand, and § 87(2)(b) helped her up.

§ 87(2)(b) and § 87(2)(b) then began walking down § 87(2)(b) toward § 87(2)(b). § 87(2)(b) and § 87(2)(b) were talking about why it was dangerous for § 87(2)(b) to be waiting for the girl that threatened her and then they began to argue “kind of loud.” They were arguing verbally about how it was stupid for § 87(2)(b) to potentially put herself in danger by waiting for the person that threatened her.

§ 87(2)(b) and § 87(2)(b) were walking on the sidewalk but then § 87(2)(b) sat down on the edge of the sidewalk. § 87(2)(b) believed that they had turned onto § 87(2)(b) and were headed toward § 87(2)(b) at this point. They were still arguing “loudly.” § 87(2)(b) observed police officers walking slowly up the block and then, about 10 minutes later, they approached § 87(2)(b) stating that they had received a call that he was assaulting § 87(2)(b). § 87(2)(b) was not hitting § 87(2)(b). § 87(2)(b) accepted this for a time and continued the argument at that location but then convinced her to keep walking. § 87(2)(b) then began to help § 87(2)(b) stand up when the cops “ran up” on § 87(2)(b). § 87(2)(b) believed that there were four uniformed police officers, all of whom were male. When the officers approached § 87(2)(b) he had just helped § 87(2)(b) stand up and she was fully standing by the time the officers approached.

The officers did not say anything when they first approached § 87(2)(b) but instead immediately resorted to physical force. § 87(2)(b) stated that the first thing the officers did was pull his hair and bring him down to the ground. § 87(2)(b) thought the officer that pulled him down was PO Sidman (male, white, uniform, 5’ 8”, 175 pounds, bald), whom he identified by reading his nameplate. Sometime while he was facedown on the ground, additional officers arrived.

Meanwhile, another officer was twisting § 87(2)(b)’s arm as if he was trying to “break my shoulder,” another cop was punching him and PO Grandstaff (short black wavy hair, 6’ 1”, white, 180 pounds, uniform) was hitting him with a nightstick. PO Grandstaff struck § 87(2)(b) in his right leg (thigh and ankle) four times with his nightstick, to which § 87(2)(b) did not respond verbally or physically. § 87(2)(b) identified Sgt. Grandstaff by reading his nameplate at the stationhouse. PO3 (male, white, 5’ 8”, slender build, black hair) punched and kicked § 87(2)(b) in his back. § 87(2)(b) had one handcuff on at this time and he believed that PO Sidman was the officer that began to handcuff him.

When the officers began to attack § 87(2)(b), § 87(2)(b) began yelling and saying that § 87(2)(b) did not do anything to her. The officers “grabbed her”, pushed her, and pulled her hair. § 87(2)(b) did not know which officers were interacting with § 87(2)(b) but assumes it was one of the new officers, as one of the officers were female and there were no females officers originally present.

§ 87(2)(b) was not physically resisting the officers in any way. § 87(2)(b) was cursing at the officers and at one point told PO Grandstaff, in response to him hitting him with a nightstick, “You’d be better off hitting me with a bat, because I eat those.”

After being handcuffed, § 87(2)(b)’s pants pockets (2 front and 2 back pockets) and coat pockets (4 pockets) were searched. § 87(2)(b) believed PO Sidman searched him but he did not witness him searching his person. § 87(2)(b) added that PO Sidman was the arresting officer and that he was the officer that returned § 87(2)(b)’s belongings to him at the station house.

Both individuals were handcuffed and questioned at opposite ends of the patrol cars. The officers asked § 87(2)(b) if he had hit § 87(2)(b) and what their relationship was.

PO Sidman told the parents of the two individuals that “it was just a big mistake” but they were still fingerprinted and taken to central booking.

§ 87(2)(b) stated several times that the argument with § 87(2)(b) was not physical.

§ 87(2)(b) sustained bruises on his leg, shoulder, ankle, and his right thumb. § 87(2)(b)'s thumb was injured when the officers were being "rough" with him. § 87(2)(b) went to § 87(2)(b) for his injuries after he was released.

§ 87(2)(b) did not know who the alleged witness was that initially prompted the incident. § 87(2)(b) told the officers that § 87(2)(b) did not do anything to her but § 87(2)(b) stated that the witness's statement was valued over § 87(2)(b)'s.

Results of Investigation

Identification of Witnesses Interviewed

§ 87(2)(b) was identified via the information recorded on PO Sidman's flysheet.

§ 87(2)(b)

§ 87(2)(b) provided the following phone statement on March 14, 2006 (encl. 10E).

§ 87(2)(b) stated that the incident "really stuck in her mind" and confirmed that she was the individual that called 911 and later spoke with the police at her door.

§ 87(2)(b) was walking from her neighbor's house to her house on § 87(2)(b), walking toward § 87(2)(b). As § 87(2)(b) was approaching her house, she saw § 87(2)(b) and § 87(2)(b) standing on the opposite sidewalk and it appeared that § 87(2)(b) was punching § 87(2)(b). § 87(2)(b) stated that a street light was out in the area and that it was hard to see for certain, so after § 87(2)(b) passed the couple, she crossed the street such that they were now all on the same sidewalk. When § 87(2)(b) turned around again, § 87(2)(b) was down on the ground and § 87(2)(b) was still punching and kicking her.

As § 87(2)(b) continued home, she saw that one of her neighbors was also watching what was happening from inside her house. When § 87(2)(b) got home, she called the neighbor and they agreed that they were both going to call 911. § 87(2)(b) stated that this person is not named § 87(2)(b). § 87(2)(b) then called 911 and reported what she had seen: a black male assaulting – punching and kicking – a black female.

Soon there after, two police officers came and spoke with her regarding her report. § 87(2)(b) repeated to the officers what she had told the 911 operator, that she saw a black male hitting a black female. § 87(2)(b) also specified the couple's exact location, which § 87(2)(b) stated the officers had already driven by. The officers then left § 87(2)(b)'s residence and went to the couple, which was 4 houses away. By this point, § 87(2)(b) stated that she had observed the couple for "at least ten minutes" and that § 87(2)(b) was punching and kicking § 87(2)(b) for "all of this time;" she could not estimate a number of strikes.

§ 87(2)(b) continued to watch the encounter as the police officers separated § 87(2)(b) and § 87(2)(b). § 87(2)(b) was still punching, kicking, and stomping on § 87(2)(b) as the officers approached him. After they were separated, § 87(2)(b) observed § 87(2)(b) begin hitting an officer and attempting to pull the same officer off of § 87(2)(b).

§ 87(2)(b) stated that she did not observe the officers use any force against § 87(2)(b). She stated that § 87(2)(b) was resisting the officers by turning his body around. § 87(2)(b) recalled that § 87(2)(b) was put up against the car at one point. § 87(2)(b) stated that she did not observe any "abuse" and that the officers were "doing their job."

Identification of Officers Interviewed

Sgt. Grandstaff and PO Sidman were identified by name at the time of reporting and were further identified via arrest documents. PO Seery and PO Buckley were identified during the interviews of Sgt. Grandstaff and PO Sidman.

Sgt. Grandstaff, PO Sidman, PO Buckley, PO Seery

Memo Book Entries

Neither Sgt. Grandstaff nor PO Seery possessed their memo books for this incident at the time of their interview.

PO Sidman (encl. 12A-C):

2107: 2 under § 87(2)(b)

Flysheet: § 87(2)(b) § 87(2)(b)

PO Buckley (encl. 18A-D):

2047: 10-34 § 87(2)(b)

2107: Transport 1 perp S/H

2135: 10-98

Aided Report (PO Sidman) (encl. 13A-E)

The Aided Report completed by PO Sidman identifies § 87(2)(b) as the victim of being “hit with a closed fist about the head. No visible injury.”

Arrest Report: § 87(2)(b) (PO Sidman) (encl. 14)

The arrest report completed by PO Sidman for § 87(2)(b) contains the following narrative: “C/W states at T/P/O deft. did strike victim w/ closed fist about the head an prevent her frong getting up off the ground and walking away.” § 87(2)(b) was charged § 87(2)(a) 160.50

Arrest Reports: § 87(2)(b) (PO Sidman) (encl. 15; 16A-C)

Arrest reports completed by PO Sidman for § 87(2)(b) contain the following statement: “At T/P/O, deft. did place herself in between A/O and deft., attempting A/O from effecting a lawful arrest.” § 87(2)(b) was charged § 87(2)(a) 160.50

CCRB Statements

Sgt. Norman Grandstaff and Officer Lawrence Sidman were interviewed at the CCRB on September 28, 2005 (encl. 11A-B; 17A-B). Sgt. Grandstaff is a § 87(2)(b)-old white male who was appointed to the force in August 1998. He is 6’ 4” and 195 pounds with blond hair and blue eyes. Officer Sidman is a § 87(2)(b)-old white male who was appointed to the force in August 1993. He is 5’ 10” and 175 pounds with brown hair and hazel eyes.

PO William Buckley and PO James Seery were interviewed at the CCRB on February 16, 2006 (encl. 19A-B; 20A-B). PO Buckley is a § 87(2)(b)-old white male who was appointed to the force in July 2002. He is 5’ 6” and 200 pounds with blonde hair and blue eyes. PO Seery is a § 87(2)(b)-old white male who was appointed to the force in July 2002. He is 6’ 0” and 195 pounds with dark brown hair and hazel eyes.

On May 9, 2005 at 9:00 PM, Sgt. Grandstaff was working as the patrol supervisor from 2:50 PM to 11:47 PM. PO Sidman was his operator, driving RMP § 87(2)(b), § 87(2)(f), and worked a similar shift. PO Buckley and PO Seery was assigned to patrol sectors 70I and 70J in a marked RMP on a 3:00 PM to 11:35 PM tour. All four officers were in uniform.

On the night of the incident, all of the officers recalled receiving a report of an assault in progress that had been generated in response to two 911 calls. When the officers responded to the vicinity, however, they had difficulty locating the individuals involved in the alleged assault. As a result, Sgt. Grandstaff requested the address of the 911 caller so that he could speak with them and obtain additional information. Sgt. Grandstaff and PO Sidman then proceeded to § 87(2)(b) spoke with § 87(2)(b) and § 87(2)(b) as was recorded on PO Sidman’s flysheet. These individuals repeated that they had observed a black male hitting a black female and refusing to let her leave and they then directed the officers to the precise location. While PO Buckley believed that he and PO Seery also responded to the residence of the 911 caller, the other officers were less clear on when PO Buckley and PO Seery responded to the scene.

Regardless, Sgt. Grandstaff and PO Sidman then proceeded to the scene of the incident. As the officers approached, they both agreed that § 87(2)(b) was crying and “hysterical” and that it did, as was reported, appear that § 87(2)(b) was preventing § 87(2)(b) from leaving. They did not agree, however, when Sgt. Grandstaff claimed that the two were not saying anything when they approached and PO Sidman stated that § 87(2)(b) and § 87(2)(b) were screaming at each other when they approached.

Sgt. Grandstaff and PO Sidman focused on § 87(2)(b) while PO Buckley and PO Seery focused on § 87(2)(b). Sgt. Grandstaff and PO Sidman asked § 87(2)(b) to come with the officers and speak to them several feet away. The officers made this request several times and while neither Sgt. Grandstaff nor PO Sidman could recall exactly how § 87(2)(b) responded, they did recall that he was noncompliant. PO Sidman described § 87(2)(b)'s behavior as “very angry.”

Although Sgt. Grandstaff and PO Sidman were unsuccessful in getting § 87(2)(b) to move, PO Buckley and PO Seery were successful in taking § 87(2)(b) aside so they could speak to her. Once she was separated from § 87(2)(b), PO Seery stated that they had received a report of a man assaulting a woman and asked her if she wanted an ambulance; PO Seery made this request although he did not observe any injuries on § 87(2)(b). PO Seery described § 87(2)(b) as being generally non-responsive, although she did decline an ambulance. PO Buckley could not recall what, if anything, § 87(2)(b) was stating although he said § 87(2)(b) was upset.

Meanwhile, § 87(2)(b) had not complied with Sgt. Grandstaff and PO Sidman’s verbal requests to move aside. Sgt. Grandstaff and PO Sidman then placed their hands on § 87(2)(b) in an attempt to guide § 87(2)(b) in their direction. § 87(2)(b) was not compliant with the officers’ actions. Sgt. Grandstaff could only recall that § 87(2)(b) pushed his hand away and that they then began to “wrestle,” while PO Sidman stated that § 87(2)(b) threw punches and kicks at the officers. Sgt. Grandstaff and PO Sidman then pushed § 87(2)(b) up against a fence, which the sergeant believed § 87(2)(b) was already holding on to.

Meanwhile, PO Buckley heard PO Sidman commanding § 87(2)(b) to comply and PO Seery also heard a “commotion.” While the officers were visually distracted by § 87(2)(b), § 87(2)(b) fled from PO Buckley and PO Seery and, per PO Seery, “lunged” toward Sgt. Grandstaff and PO Sidman and, in an effort to separate the officers from § 87(2)(b) “latched onto” Sgt. Grandstaff’s back. § 87(2)(g)

§ 87(2)(b) Sgt. Grandstaff and PO Seery believed that they were already on the ground, while PO Sidman and PO Buckley believed that they were standing, although PO Buckley admitted that he was unsure. Regardless of the timing, Sgt. Grandstaff claims that after § 87(2)(b) “charged” him, he felt her hand on his holster. Almost immediately after, however, PO Buckley and PO Seery pulled § 87(2)(b) off of Sgt. Grandstaff with what they described as minimal force. Although the officers said that § 87(2)(b) was still upset, they stated that she seemed to have realized that what she did was wrong almost as soon as she did it. While Sgt. Grandstaff believed PO Buckley and PO Seery put § 87(2)(b) on the ground and handcuffed her after this incident, neither PO Buckley nor PO Seery corroborated this.

As § 87(2)(b) was being escorted away by PO Buckley and PO Seery, § 87(2)(b) was still physically resisting Sgt. Grandstaff and PO Sidman’s attempts to handcuff him, who were now crouching on the ground with § 87(2)(b). Sgt. Grandstaff and PO Sidman agreed that § 87(2)(b) was both throwing punches and kicking his legs. PO Sidman then struck § 87(2)(b) in his leg approximately three times with his nightstick, which succeeded in gaining enough compliance from § 87(2)(b) so that the officers were able to handcuff him.

Once § 87(2)(b) was handcuffed, he was escorted to PO Buckley and PO Seery’s RMP, who transported him to the stationhouse; Sgt. Grandstaff and PO Sidman transported § 87(2)(b). At the stationhouse, PO Sidman, who was made the arresting officer, was the only officer to have any significant contact with § 87(2)(b) and § 87(2)(b). PO Sidman allowed § 87(2)(b) to call her mother. PO Sidman stated that the mother was very upset to learn that § 87(2)(b) had been with § 87(2)(b) and PO Sidman presumed that there was some sort of history between § 87(2)(b) and § 87(2)(b). § 87(2)(b) told

PO Sidman and her mother that whenever she becomes upset, she likes to simply sit down, wherever she is. § 87(2)(b) stated that when the officers observed them, § 87(2)(b) was actually trying to help her up but she wanted to stay seated. PO Sidman did not find this story credible and therefore continued to charge § 87(2)(b) § 87(2)(a) 160.50. PO Sidman asked § 87(2)(b) whether he wanted to go to the hospital or for EMS to respond to the stationhouse, but § 87(2)(b) declined.

Medical Records

§ 87(2)(b) — § 87(2)(b)
As stated above, § 87(2)(b) complained of mild pain in her neck, back, left shoulder, and leg. § 87(2)(b)'s medical records were illegible at points and it was not possible to decipher the patient instructions. It does not appear that § 87(2)(b) was issued a prescription.

§ 87(2)(b) — § 87(2)(b)
As stated above, § 87(2)(b) complained of an "ache" in his right shoulder, leg, and wrist. § 87(2)(b) was discharged with one dose of 800mg Motrin.

NYPD Documents

SPRINT (encl. 23A-B). At 8:42 PM, an anonymous female caller reported that an unknown male was assaulting an unknown female at the corner of § 87(2)(b) and § 87(2)(b). The ANI-ALI of this call identified that the call was placed from the residence of § 87(2)(b) at § 87(2)(b). At 8:45 and 8:47 PM, the patrol sergeant and the Sector I car responded to the scene. At 8:47 PM, the sergeant reported that he was responding to residence of the female 911 caller. Twenty minutes later, at 9:07 PM, the patrol supervisor reported that two individuals had been placed under arrest in front of § 87(2)(b).

Roll Call (encl. 24A-B). The 70 Precinct's Tour 3 roll call from the date of the incident lists Sgt. Grandstaff as the patrol supervisor and PO Sidman as his operator. It further identifies PO Buckley and PO Seery as the officers assigned to Sectors I and J.

Command Log (encl. 27). PO Sidman logged the arrests of § 87(2)(b) and § 87(2)(b) at 9:25 PM; they were both taken to Brooklyn Central Booking at 1:20 AM. Physical and medical condition of both individuals was listed as "apparently normal."

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History (encl. 3; 4; 5)

Neither § 87(2)(b), § 87(2)(b), nor § 87(2)(b) have a CCRB complaint history.

Police Officer CCRB History

POs Seery, Buckley and Sidman do not have a substantiation history with the CCRB (encl. 2). Sgt. Grandstaff received instructions for a substantiated charge of physical force in case 200406525 (encl. 1).

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(g)
§ 87(2)(b). PO Sidman and Sgt. Grandstaff both acknowledged using physical force to arrest § 87(2)(b) and PO Sidman admitted to using his nightstick on § 87(2)(b) § 87(2)(g)

Undisputed Facts

Sgt. Grandstaff and Officers Sidman, Buckley, and Seery responded to a report of an assault in progress. After speaking to the individual who initially called 911, the officers proceeded to the location of § 87(2)(b) and § 87(2)(b). The officers separated § 87(2)(b) and § 87(2)(b) and the officers' interaction with § 87(2)(b) eventually became physical, culminating in the use of a nightstick as he was being handcuffed. Both § 87(2)(b) and § 87(2)(b) were arrested and transported to the 70 Precinct's stationhouse.

Disputed Facts

§ 87(2)(g)

Credibility

§ 87(2)(g)

Regardless, a witness reported to both 911 and to the police in person that § 87(2)(b) was assaulting § 87(2)(b). § 87(2)(b) acknowledged that she is not supposed to be with § 87(2)(b) and PO Sidman stated that § 87(2)(b) was very upset to learn that her daughter had been with § 87(2)(b). While § 87(2)(b) also told her mother and PO Sidman that she was willingly sitting on the sidewalk, PO Sidman did not find this credible, § 87(2)(a) 160.50

§ 87(2)(g)

While § 87(2)(b) could not provide an explanation for the force allegedly used against, all of the officers testified that § 87(2)(b) evaded PO Buckley and PO Seery and attempted to pull Sgt. Grandstaff away from § 87(2)(b) § 87(2)(g)

While § 87(2)(b) stated that he was compliant and never resisted with the officers, he concurrently stated that he taunted the officer that was hitting him with a nightstick, saying "You'd be better off hitting me with a [baseball] bat – I eat [nightsticks]." Furthermore, while § 87(2)(b) alleges that he was punched and kicked in his lower back, he did not report any pain in his back when he sought medical treatment at the hospital. Instead, § 87(2)(b) complained only of injuries consistent the officers' testimony: pain to his wrist and arm as a result of him resisting being handcuffing and pain in his leg from the nightstick.

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

Allegation C: Force: PO Lawrence Sidman used physical force against § 87(2)(b)

Allegation D: Force: PO Lawrence Sidman struck § 87(2)(b) with a nightstick.

§ 87(2)(b) alleges that he was pulled to the ground by his hair, punched, kicked, and struck with a nightstick. § 87(2)(g)

§ 87(2)(b) In an effort to handcuff him, § 87(2)(b) was brought down to the ground where he continued to resist by punching and kicking his legs. PO Sidman then struck § 87(2)(b) with his nightstick 3 times to gain his compliance. § 87(2)(g)

§ 87(2)(g)

Allegation F: Force: PO James Seery used physical force against § 87(2)(b)

§ 87(2)(b) alleges that she was pushed, pulled to the ground by her braids, and punched once in the back. § 87(2)(g)

Sgt. Grandstaff stated that he felt § 87(2)(b)'s hand on his holster. § 87(2)(g)

Date:

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Reviewed by:

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